

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 5, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW
BY THE JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

**IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.**

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. **MSP20-01308 ESTATE OF BARRY TAYLOR**
9:00 AM HEARING IN RE: REPORT OF SALE AND PET FOR ORDER CONFIRMING SALE OF REAL PROPERTY FILED
ON 4/7/26 BY DAVID HANKS

Need:

1. Proof of Posting. PrC §§ 10308(c), 1230
2. Proof of mailing to purchaser and persons requesting special notice. Service list is not attached to Notice of Hearing filed 4-8-2026. PrC § 10308 (c)
3. Counsel to appear. CRC § 7.452.

Notes:

- A. Real property is located at 1127 Key Route Blvd., Albany, CA
- B. Sale price is \$635,000.00.
- C. Overbid price is \$667,250.00.

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2A. **MSP21-00698 ESTATE OF CARMEN S NAZARETA**
9:00 AM HEARING IN RE: PETITION FOR DETERMINATION OF HEIRS, AND SUCCESSORS THERETO, ENTITLED TO
NOTICE AND DISTRIBUTION FILED ON 02/04/25 BY TERESA NAZARETA PAYSINGER

Need:

1. Appearances to report status
2. Proposed Order

Note: Stipulated Settlement Agreement and Order filed 4-17-2026.

2B. **MSP21-00698 ESTATE OF CARMEN S NAZARETA**
9:00 AM HEARING IN RE: PETITION FOR ACCOUNTING FROM OCTOBER 12, 2021 THROUGH OCTOBER 22, 2024
FILED ON 05/27/25 BY DARLENE NAZARETA LEGASPI

Petitioner still must do the following:

1. Appear at the hearing to report status
2. File an Accounting that complies with PrC § 1060 *et seq.*
3. File a Summary of Account that complies with PrC § 1061(b). Accounting must begin with values as reported in Inventory & Appraisal.
4. File a verified declaration to provide a list of the names and addresses of all persons entitled to notice
5. Have a copy of the Petition and Notice of Hearing mailed to all persons entitled to notice and file the completed Notice of Hearing with the Court.
6. Submit a Proposed Order

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2C. **MSP21-00698** **ESTATE OF CARMEN S NAZARETA**
9:00 AM HEARING IN RE: OSC FOR DARLENE LEGASPI

Drop.

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5. 9:00 AM	P23-01467 MATTER OF: THE MELVIN KAHN REVOCABLE TRUST DATED APRIL 13, 2019 HEARING IN RE: STATUS/TRIAL SETTING - SET PER SIP & ORDER FILED 12/11/25 Need appearances to report status Note: Stipulation and Order to Appoint Toby Levenson as Successor Trustee filed 4-6-2026.
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6. **P24-01918** **MATTER OF: THE AISHA ROQUE SPECIAL NEEDS TRUST**
9:00 AM HEARING IN RE: FIRST ACCOUNT AND REPORT OF TRUSTEE FILED BY HEATHER FISHER ON 12/09/2025

Need:

1. Appearances
2. Bond presented for filing before Order will be signed.
3. Proposed Order

Note: ¶¶ 24 and 26 at page 5 requests fees on account to petitioner and attorney.

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7. **P25-00761** **ESTATE OF: GENEVA POE**
9:00 AM HEARING IN RE: PROOF OF FUNDS IN A BLOCKED ACCOUNT

Need:

1. Appearances to report status of depositing funds into a blocked account, pursuant to Order Confirming Sale of Real Property filed 11-20-2025
2. Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account Form MC-356 filed

Note: Letters of Administration issued to niece Susan Jackson 9-2-2025.

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8. 9:00 AM	P25-00964 HEARING IN RE: FIRST ACCOUNT AND REPORT OF TRUSTEE FILED BY HEATHER FISHER ON 12/09/2025	MATTER OF: THE C.R. SPECIAL NEEDS TRUST
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Petition Approved
Proposed Order Submitted
No Appearance Required

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| 9.
9:00 AM | P25-01539 ESTATE OF: HUGH HARVEY
HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA
FILED ON 08/29/25 BY ROSITA O. HARVEY

Need:
<ol style="list-style-type: none">1. Appearances2. Verified declaration by petitioner to add Peter Hinckley, trustee, and trust beneficiaries to the list at Petition item 8.3. Proof of mailing Notice of Petition to Administer Estate and copy of petition to all heirs and beneficiaries. PrC § 8110; LR 7.151(e)4. Proof of Publication. PrC § 81205. Order for Probate Form DE-140 |
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10.

9:00 AM

P25-02152

MATTER OF: GRACE MALFITANO LIVING TRUST

HEARING IN RE: PETITION TO INVALIDATE TRUST ON THE BASIS OF UNDUE INFLUENCE AND/OR LACK OF MENTAL CAPACITY; TO DETERMINE TO WHOM PROPERTY SHALL PASS; FOR FINANCIAL ELDER ADULT ABUSE' AND RETURN OF TRUST PROPERTY AND RECISSION OF DEEDS FILED ON 12/02/25 BY GRACE MALFITANO

Need:

1. Appearances
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Proposed Order

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**11. P25-02231 MATTER OF: K.H. HOFMANN TRUST FOR THE BENEFIT OF VITA LORI HOFMANN
UTA DATED OCTOBER 1, 1964**

9:00 AM HEARING IN RE: PETITION FOR ACCOUNTING FILED ON 12/12/25 BY VITA LORI HOFMANN

Need:

1. Appearances
2. Proposed Order

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12A.

9:00 AM

P25-02234

MATTER OF: RAE J. DU VALL TRUST

HEARING IN RE: PETITION FOR REMOVAL FILED ON 12/12/25 BY JOANNE FUJIMOTO

Need:

1. Appearances
2. Verified declaration by petitioner to include current address of Amber Silva-Scharmer so court can confirm mailing
3. Proof of mailing to Nancy Lawrence or waiver of notice. PrC § 17203
4. Proposed Order

Note: Notice of Motion and Motion to Disqualify Counsel filed by Joanne Fujimoto 3-20-2026, is set for hearing 7-21-2026.

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12B.

9:00 AM

P25-02234

MATTER OF: RAE J. DU VALL TRUST

HEARING IN RE: PETITION FOR FUNDS FILED ON 01/16/2026 BY JOANNE FUJIMOTO

Need:

1. Appearances
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Proposed Order

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**14. P25-02237 MATTER OF: THE JAMES T AND DARLENE T SCRIBNER FAMILY TRUST MARRIED
A, B, ALTERNATE B AND C RECOVERABLE LIVING TRUST DATED AUGUST 7, 2018**

9:00 AM HEARING IN RE: PETITION FOR ORDERS FILED BY KENT WHITE ON 12/17/25 PROBATE TRUST
PETITION FILED

Need:

1. Appearances
2. Verified declaration by petitioner to include current address of Chipper Leech or verified declaration by petitioner showing diligent efforts made to locate and serve him. CRC 7.52
3. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)

Notes:

1. Copy of trust is attached to Request for Judicial Notice filed 12-17-2025.
2. Order Granting Kent White's Ex Parte Petition for Order Suspending James Scribner as Trustee and Appointing Mark Unger as Interim Successor Trustee filed 12-17-2025.
3. Order Granting Kent White's Ex Parte Petition to Accept Declination of Professional Fiduciary, Mary Unger, as Interim Trustee and to Appoint Professional Fiduciary, Roger Boaz, CLPF, as Interim Trustee and for Orders to Marshal Trust Assets filed 4-16-2026.